THE STATE

Versus

PAUL RUSIMBA

IN THE HIGH COURT OF ZIMBABWE
DUBE-BANDA J
MASVINGO 4 May 2026

Criminal review

DUBE-BANDA J:

[1] The case is before me on automatic review in terms of s 57 of the Magistrates Court Act [*Chapter 7:10*]. The offender was charged with the crime of contravening s 70(b)(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Code"). It was alleged that on 5 August 2025, the offender, a male person, unlawfully and intentionally enticed the complainant, a female juvenile aged 12, to have sexual intercourse with him.

[2] The brief facts of the matter reveals that at the material time, the complainant was 12 years old, and the offender was 21 years old. The two had sexual intercourse on several occasions. On the first occasion, the complainant spent the night at the offender's residence, in his bedroom, and the two had sexual intercourse three times. Thereafter, they continued on many occasions to have sexual intercourse, until the matter was discovered by the complainant's mother and reported to the police.

[3] The offender pleaded guilty and was duly convicted. He was sentenced to 30 months imprisonment, of which 15 months were suspended on the usual conditions of good behaviour, and the remaining 15 months were suspended on condition of community service.

[4] The case raises a matter of significant concern. This is so because the complainant was born on 29 June 2013, and as of 5 August 2025, she was 12 years and just over a month old. In this regard s 2 (3) of the Code states that: -

> "Where the determination of the age of a person is relevant for the purposes of this Code, a person shall be deemed to have attained a specified age on the commencement of the relevant anniversary of the day of his or her birth."

[5] It follows, therefore, that on 5 August 2025 the complainant, was at law12 years old as she was yet to turn 13. She will be turning 13 on 29 June 2026. See *The State* v *Moyo* HB-210-23.

In this context, s 64(1) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] provides thus:

> (1) A person accused of engaging in sexual intercourse, anal sexual intercourse, or other sexual conduct with a young person of or under the age of twelve years shall be charged with rape, aggravated indecent assault, or indecent assault, as the case may be, and not with sexual intercourse or performing an indecent act with a young person, or sodomy." (My emphasis).

[6] Therefore, at the time of engaging in sexual intercourse with the offender, the complaint was, in the reading of s 64(1) of the Code, "a young person of the age of twelve years." In the circumstances, the competent charge was rape as defined in s 65 of the Code. In fact, contravention of s 70(b)(1) of the Code does not arise in a case where the complainant is 12 years old, or under the age of 12 years. In other words, there cannot be consensual sexual intercourse with a young person of 12 years or under 12 years old. The use of the word "shall" in s 64(1) implies peremptoriness. In the circumstances, the offender was charged, prosecuted, convicted, and sentenced on an incompetent charge. In terms of s 29 (2) (b) (i) of the High Court Act [*Chapter 7:06*], I find that the proceedings in the court *a quo* were not in accordance with real and substantial justice.

[7] The last question is whether a substantial miscarriage of justice has actually occurred, to require the proceedings to be set aside and the matter remitted to the lower court, for the offender to be charged with the appropriate charge. In general, where an accused had been charged with an incompetent charge, it will be appropriate to set aside the proceedings and remit the matter to the lower court for a trial *de novo* on a competent charge. However, in *casu*, I accept that a miscarriage of justice has occurred, but I cannot classify it as "a substantial miscarriage of justice" as required by s 29(3) of the High Court Act to warrant the conviction and sentence to be quashed or set aside. It is for these reasons that I am not inclined to set aside the proceedings and remit the matter for a trial *de novo.* Since the proceedings in the court *a quo* were not in accordance with real and substantial justice, I withhold my certificate.

DUBE-BANDA J …….